

26STCV15028 26STCV15028

County: los-angeles

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Case Number: 26STCV15028 Hearing Date: September 24, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
24, 2026

CASE NAME: Steven

A. Schuman v. Richard C. Leonard, et al.

CASE NO.: 26STCV15028

MOTION

TO DISQUALIFY COUNSEL

MOVING PARTY: Plaintiff

Steven A. Schuman

RESPONDING PARTY(S): Defendants Lee T. Dicker, Lee T.

Dicker, APC, Richard C. Leonard, Richard C. Leonard, APC, and Kevin S. Dicker,
APC

REQUESTED RELIEF:

1. An

order disqualifying Richard C. Leonard from representing any party in this
matter other than himself and his professional corporation due to unwaivable

conflict of interest and that he is a key percipient witness;

2. An

order disqualifying the firm Leonard, Dicker & Schreiber from representing any party in this action.[1]

TENTATIVE RULING:

1. Motion

to disqualify Richard C. Leonard from representing any party other than himself and his professional corporation is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 11, 2026, Plaintiff Steven A. Schuman (Plaintiff) filed a verified complaint against Defendants Richard C. Leonard, Lee T. Dicker, Richard C. Leonard, APC, Lee T. Dicker, APC, Kevin S. Dicker, APC, James P. Schreiber, and Leonard, Dicker & Schreiber, LLP (Defendants) with causes of action for: (1) judicial dissolution, winding up, accounting, and judicial supervision of registered limited liability partnership; (2) breach of fiduciary duty; (3) accounting; and (4) conversion of partnership property.

According to the complaint, Defendants Lee T. Dicker and Richard C. Leonard mentored Plaintiff from his start as a law clerk in 1987 through his rise to an equity partner at the firm Leonard, Dicker & Schreiber, LLP. After Plaintiff moved to San Luis Obispo in 2022 and stopped sharing in firm profits, Defendants allegedly diverted over \$1,000,000 in receivables owed to Plaintiff, provided incomplete or misleading accountings, and misreported income on Plaintiff's tax documents.

On June 23, 2026, Defendants Lee T. Dicker, Lee T. Dicker, APC, Richard C. Leonard, and Richard C. Leonard, APC (Dicker & Leonard) filed a verified answer. That same date, Dicker & Leonard as well as Leonard, Dicker & Schreiber filed a verified cross-complaint against Cross-Defendants Schuman and Steven A. Schuman, APC for breach of contract.

On June 29, 2026, Plaintiff filed the instant motion to disqualify counsel.

On July 13, 2026, Defendant Kevin S. Dicker, APC filed a

demurrer.

On July 17, 2026, Plaintiff filed a substitution of attorney.

On August 12, 2026, Cross-Defendants filed an answer to the cross-complaint.

On September 11, 2026, Dicker & Leonard filed an opposition to the motion to disqualify counsel. On September 17, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

"A judge's authority to disqualify an attorney has its origins in the inherent power of every court in the furtherance of justice to control the conduct of ministerial officers and other persons in pending judicial proceedings." *Neal v. Health Net, Inc.*, (2002) 100 Cal.App.4th 831, 840; see also *Code Civ. Proc.*, § 128, subd. (a)(5) ["Every court shall have the power to . . . control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto"].) "The power is frequently exercised on a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information." *Responsible Citizens v. Superior Court*, (1993) 16 Cal.App.4th 1717, 1723-1724.)

;

"Motions to disqualify counsel present competing policy considerations. On the one hand, a court must not hesitate to disqualify an attorney when it is satisfactorily established that he or she wrongfully acquired an unfair advantage that undermines the integrity of the judicial process and will have a continuing effect on the proceedings before the court. [Citations.] On the other hand, it must be kept in mind that disqualification usually imposes a substantial hardship on the disqualified attorney's innocent client, who must bear the monetary and other costs of finding a replacement. A client deprived of the attorney of his [or her] choice suffers a particularly heavy penalty where ... his [or her] attorney is highly skilled in the relevant

area of the law.” (Gregori v. Bank of America (1989) 207 Cal.App.3d 291, 300.) “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (1999) 20 Cal.4th 1135, 1145.) Generally, the disqualification of an attorney vicariously disqualifies his or her firm. (William H. Raley Co. v. Superior Court (1983) 149 Cal.App.3d 1042, 1048–1049.)

ANALYSIS:

Request for
Judicial Notice

The court DENIES Defendants’ request for judicial notice as immaterial to this ruling.

Disqualify

Plaintiff contends RCL must be disqualified as counsel for KSD and LD&S because there is an unwaivable conflict due to RCL’s direct conflicting interests to those of the purported clients. He adds that he has standing to challenge LD&S’s representation since he is an equity partner/member whose rights in LD&S is directly at issue. Finally, Plaintiff argues that RCL is a central percipient witness which requires disqualification.

Defendants argue that Plaintiff lacks standing in his individual capacity since he is not a partner of LD&S, that RCL obtained informed written consent from all Defendants to represent them, and imposing the advocate witness rule would “work a substantial hardship on the client.”

Plaintiff replies that he seeks disqualification due to directly adverse interests (not confidentiality issues), the court is free to address an obvious conflict issue regardless of standing issues, the client waivers are ineffective, and the advocate-witness rule prohibits his advocacy since there is a real threat of his arguments being interpreted as evidence.

Conflict of
Interest

Rule 1.7(a) – (d) provides:

(a) A

lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.

(b) A

lawyer shall not, without informed written consent* from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person,* or by the lawyer's own interests.

(c) Even

when a significant risk requiring a lawyer to comply with paragraph (b) is not present, a lawyer shall not represent a client without written* disclosure of the relationship to the client and compliance with paragraph (d) where:

(1) the lawyer has, or knows* that

another lawyer in the lawyer's firm* has, a legal, business, financial, professional, or personal relationship with or responsibility to a party or witness in the same matter; or

(2) the lawyer knows* or reasonably

should know* that another party's lawyer is a spouse, parent, child, or sibling of the lawyer, lives with the lawyer, is a client of the lawyer or another lawyer in the lawyer's firm,* or has an intimate personal relationship with the lawyer.

(d) Representation is permitted

under this rule only if the lawyer complies with paragraphs (a), (b), and (c), and:

(1) the lawyer reasonably

believes* that the lawyer will be able to provide competent and diligent representation to each affected client;

furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.” (M'Guinness v. Johnson (2015) 243 Cal.App.4th 602, 613).¹

Here, it is appropriate to disqualify RCL due to running afoul of the advocate witness rule without informed written consent. First, it is undisputed that RCL is a pertinent witness in this partnership dispute. Along those lines, there is a risk that a jury would be confused in differentiating between RCL's testimony and his argument. Second, the informed written consent presented with the opposition is silent as to RCL's potential to serve as a witness. (Declaration of Richard C. Leonard ¶¶ 4, 11, Exhibit 3 Conflict Waivers.) Instead, the waivers are devoted to potential conflicts of interest. (Ibid.)

Accordingly, the court GRANTS Defendants' motion to disqualify Richard C. Leonard from serving as counsel for anyone but himself and his professional corporation.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to disqualify Richard C. Leonard from representing any party other than himself and his professional corporation is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 24, 2026 _____ Upinder S. Kalra

Judge
of the Superior Court

[1]

This request for relief is not developed in the moving papers. As such, the

court considers it abandoned. (See *Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-72 (“When a point is asserted without argument and authority for the proposition, ‘it is deemed to be without foundation and requires no discussion by the reviewing court.’”))